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Case Number: 25STCV18265 Hearing Date: July 30, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: 07/30/2026

CASE

NUMBER: 25STCV18265

CASE NAME: DANIELA GAMA vs GOLD COAST REFRACTORY SERVI...

MOVING

PARTY: Defendants Gold

Coast Refractory Service and Robert L. Black

OPPOSING

PARTY: Plaintiff Daniela Gama

PROCEEDING: Demurrer

RULING

SUMMARY: Defendants Gold Coast

Refractory Service and Robert L. Black's Demurrer to the FAC is sustained with leave to amend.

Plaintiff

Daniela Garma is to file an amended pleading within _____ days of this Ruling.

The Case Management Conference is

continued to _____, 2026, at 8:30AM.

Background

On June 24, 2025, plaintiff Daniela Gama (“Plaintiff”) filed a Complaint against defendants Gold Coast Refractory Service (“Gold Coast”) and Robert L. Black (“Black” and collectively “Defendants”), alleging two causes of action for (1) Retaliation (Lab. Code §§ 1102.5, 1102.6), and (2) Wrongful Termination in Violation of Public Policy.

Plaintiff alleges that Gold Coast and Black were Plaintiff’s joint employers within the meaning of the Labor Code and that she was hired on or about November 28, 2023 by Defendants as an Office Manager where she developed a friendship with Steven E. Cervantes (“Cervantes”). Plaintiff contends that after Cervantes provided notice to Defendants for his intent to pursue a lawsuit, Black began ignoring her and, ultimately, Defendants terminated her employment on or about February 7, 2025, one week after Cervantes filed his lawsuit.

On September 2, 2025, Defendants filed their Demurrer, which the Court sustained with leave to amend. On March 11, 2026, Plaintiff filed a First Amended Complaint (“FAC”), alleging the same causes of action against the same defendants.

LEGAL STANDARD

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) “For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) “A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.) “

Leave
to Amend

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 889.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

DISCUSSION

First Cause of Action
(Retaliation Under Lab. Code § 1102.5)

Defendants

argue that Plaintiff has not made any changes to the facts in this cause of action, as to which subjected a Demurrer was previously sustained. Specifically, they contend that Plaintiff fails to allege a reasonable belief that Defendants violated a local, state, or federal law, focusing instead on her friendship with another person. Defendants argue that Plaintiff's allegation, “Employers believed or perceived that Plaintiff would also engage in protected activities including serving as a witness in Mr. Cervantes' case or filing a similar retaliation lawsuit against the company[.]” in paragraphs 36-37 of the FAC is conclusory. Moreover, according to Defendants, Plaintiff's addition of allegations in paragraph 23 regarding her exchange with Bernabe Soledad (“Soledad”) does not support a reasonable inference that Defendants engaged in retaliatory conduct.

Plaintiff

argues that she has adequately alleged retaliation in the FAC as she has provided specific factual allegations, and disclosed theft by Gold Coast's vice-president. Plaintiff contends that the FAC allows a reasonable inference of knowledge and retaliatory motive and Defendants improperly seek to litigate

factual issues (e.g., Soledad's communication) that must be developed through discovery.

To

establish a prima facie case for retaliation under section 1102.5, "a plaintiff must show that she engaged in protected activity, that she was thereafter subjected to adverse employment action by her employer, and there was a causal link between the two." (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 710 [internal citations and quotations marks omitted].) Section 1102.5 of the Labor Code also prohibits an employer from retaliating against an employee "because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, ... or for providing information to, or testifying before any public body conducting ... [a] hearing"

In Mokler

v. County of Orange (2007) 157 Cal.App.4th 121, the employee did engage in a protected activity because "Mokler also expressed her belief that removal of the contracts department violated both federal and state law" and "Mokler also expressed her belief that removal of the contracts department violated both federal and state law." (Id. at 130 [disapproved on other ground in Lawson, supra, 12 Cal.5th 703.] Thus, the liability of the employer in Mokler for retaliation was not premised solely on the employer's "belief" that the employee had engaged in a protected activity.

In Morgan

v. Regents of University of California (2000) 88 Cal.App.4th 52 ("Morgan"), the plaintiff's layoff was alleged to have occurred after the plaintiff filed an internal grievance claiming race discrimination. (Id. at 57-58.) Following this, the plaintiff engaged in a series of attempts to be hired. (Id. at 58-63.) The discussion in Morgan focuses on summary judgment. (Id. [generally].) The holding in that case allows a causal link to be established by an inference derived from circumstantial evidence, but emphasizes that "[e]ssential to a causal link is evidence that the employer was aware that the plaintiff had engaged in the protected activity." (Id. at 69-70.)

Plaintiff

has failed to plead factual allegations to support the FAC's conclusory allegation that Defendants retaliated against her because of a perception that she was going to engage in protected activity. Plaintiff's alleged interaction

with Soledad concerning Gold Coast's vice president is not the basis for Plaintiff's First Cause of Action, which stems from, as alleged, a belief or perception by Defendants that Plaintiff would "engage in protected activities including serving as a witness in Mr. Cervantes' case or filing a similar retaliation lawsuit against the company." (FAC ¶ 36.) There appears to be no connection to Plaintiff's knowledge of Gold Coast's vice president's taking of equipment and Cervantes' lawsuit. Further, there are no allegations concerning the contentions that Defendants knew of Plaintiff's relationship with Cervantes (id. at ¶¶ 18-19) and "Defendants believed Plaintiff had pushed Mr. Cervantes to sue" (id. at ¶ 23.) The Court cannot reasonably infer a statutory disclosure from the facts alleged.

With regard

to defendant Black, Defendants argue that Labor Code section 1102.5 does not give rise to individual liability. Plaintiff presents a two-pronged argument: (1) that the statute provides a basis for individual liability, and (2) that Plaintiff has pled that Black was Plaintiff's employer or joint employer.

The Court

summarizes the cases used in the parties' papers on this issue:

Reno v. Baird

(1998) 18 Cal.4th 640: The California Supreme Court held that while an employer may be held liable for discrimination under FEHA, individual supervisory employees who do not otherwise qualify as employers cannot be sued or held personally liable for that discrimination.

Jones v. Lodge at

Torrey Pines Partnership (2008) 42 Cal.4th 1158: The California Supreme Court held that non-employer individuals were not personally liable for their role in retaliation for which the employer was liable despite the plain language of Government Code section 12940(h) using the word "person."

People v. Mendoza

(2000) 23 Cal.4th 896: The California Supreme Court held that, as a general rule in construing statutes, a court presumes that the legislature intends to change the meaning of the law when it alters statutory language, but courts must reject a literal or plain-meaning interpretation

of a statute if it would produce “absurd or unjust results” that the Legislature could not have intended

While these

cases seem to support Defendants’ argument that Labor Code section 1102.5 does not give rise to individual liability, Plaintiff has alleged that Black is an employer, joint employer, and Gold Coast’s alter ego due to his control over the terms and conditions over Plaintiff’s employment. (FAC ¶¶ 4, 12-16.) Because, on Demurrer, the Court must take as true the allegations in Plaintiff’s pleading, Black’s Demurrer, the Court would not sustain a demurrer on the grounds that Black cannot be personally liable for retaliation. But, as explained above, the allegations in the FAC regarding retaliation are not sufficient to withstand demurrer.

Accordingly,

the Demurrer to the First Cause of Action is sustained with leave to amend.

Second Cause of Action

(Wrongful Termination in Violation of Public Policy)

Though each

party provides separate argument for the Second Cause of Action, Plaintiff’s second cause of action is grounded on the same conduct as the retaliation claim under Labor Code section 1102.5. (FAC at ¶¶ 33-34.)

“The

elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (Yau v. Allen (2014) 229 Cal.App.4th 144, 154.)

The Second

Cause of Action fails because of the deficiency in the factual allegations showing a violation of public policy.

Accordingly,

the Demurrer to the Second Cause of Action is sustained with leave to amend

Conclusion

Defendants Gold Coast Refractory Service and Robert

L. Black's Demurrer to the FAC is sustained with leave to amend.

Plaintiff Daniela Garma is to file an amended

pleading within _____ days of this Ruling. The Case Management Conference is continued to
_____, 2026, at 8:30AM.

Date: 07/30/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court